

M/s Mehak Metals Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 10 February 2016 · Writ-C No. 46429 of 2013 · **Writ dismissed with liberty to seek clause 6.5 Supply Code remedy.**

HEADNOTE

On the petitioner's statement that it would first pursue the clause 6.5 Electricity Supply Code, 2005 remedy, the Division Bench dismissed the writ with that liberty and discharged any interim order.

FACTUAL SUMMARY

M/s Mehak Metals Pvt. Ltd. filed a 2013 writ against the State of Uttar Pradesh and four others over an electricity supply dispute. Notice issued in September 2013 and a counter affidavit was later taken on record. A January 2014 listing order required the matter to appear in the printed cause list. When the petition came up on 10 February 2016, counsel stated that the petitioner would first pursue the clause 6.5 Electricity Supply Code, 2005 remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ dismissed with liberty to pursue clause 6.5 first

HOLDING

On the petitioner's statement that it would first seek the clause 6.5 Electricity Supply Code, 2005 remedy, the writ petition was dismissed with that liberty and any interim order was discharged. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY SUPPLY GRIEVANCE

Writ dismissed on the petitioner's election to pursue clause 6.5 first; no finding on the underlying bill or connection. ¶ 4